

Abhinav Seva Sansthan Mahavidyalaya v. U.P. Power Corporation Nigam Ltd. & Ors.

Allahabad High Court · Division Bench · 24 March 2011 · WRIT - C No. 8747 of 2010 · **Writ petition dismissed (liberty to appeal the final assessment)**

HEADNOTE

Where a consumer has paid compounding charges for meter tampering / theft of electricity under Section 152 of the Electricity Act, 2003, the tampering stands compounded and the licensee need not follow the meter sealing/testing procedure of para 5.6(d) of the U.P. Electricity Supply Code, 2005 before the assessment can stand. Section 152 operates at two stages: under sub-section (2), where no prosecution has yet been instituted, payment of the compounding sum sets the person at liberty and bars proceedings; sub-section (3) (acceptance deemed an acquittal) applies only where a prosecution is already pending. Compounding therefore does not require a pending prosecution. A compounding amount paid without protest or contemporaneous objection cannot later be assailed as realised under coercion.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(d)

Meter-testing procedure vs a compounded theft offence

QUESTION

Where a consumer has paid compounding charges under Section 152 for meter tampering, must the licensee still follow the meter sealing/testing procedure under para 5.6(d) of the Supply Code before the compounding/assessment can stand?

HOLDING

No. Once the sum is paid under Section 152(1) and the offence is deemed compounded, the tampering stands admitted-compounded and the question of following the meter-testing procedure (para 5.6(d)) does not arise. The theft assessment was made on the Code's formula (Annexure 6.3); the procedural challenge fails. ¶ 6-7, 14

LIMITING FACTS

Contracted load 7.5 KW against 32 KW connected; meter found tampered (a shunt resistance reducing the recording by 50%), the inspection videographed; the petitioner paid the compounding charge (Rs. 3,20,000) and part of the provisional assessment voluntarily, without protest.

QUALIFIER

The correctness of the provisional assessment (Rs. 4,29,359.56) was left to the statutory appeal under Section 127.

INTERPLAY · EA2003::152

Compounding of electricity theft — whether a pending prosecution is required

HOLDING

Section 152(2) and (3) operate at different stages: under s.152(2), where no criminal proceeding has yet been instituted, payment of the compounding sum sets the person at liberty and bars institution of proceedings; s.152(3) (acceptance deemed an acquittal) applies only where a prosecution is already pending. Compounding therefore does not require a pending prosecution. ¶ 16-19

FLAG The judgment refers throughout to 'Section 152(2) of the Electricity Supply Code 2005'; Section 152 is in the Electricity Act, 2003. Recorded, not merged.

PRINCIPLE TAGS

voluntary-payment-forecloses-coercion-plea A compounding/assessment amount paid without protest or contemporaneous objection cannot later be assailed as realised under coercion. ¶ 11-12

NOT DECIDED — NEGATIVE AUTHORITY

The quantum of the provisional electricity-theft assessment was not adjudicated; liberty was granted to pursue the statutory appeal under Section 127. ¶ 13, 20

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dakshin Haryana Bijli Vitran Nigam Ltd. & Ors. v. Megh Raj</i> Revision Petition No. 3144 of 2007, decided 11.9.2008 [7031498] National Consumer Disputes Redressal Commission	The power to compound under Section 152 presupposes a pending prosecution, acceptance of the sum amounting to an acquittal.	Distinguished / confined — read as applicable only to compounding under s.152(3), where a prosecution is pending; it does not govern s.152(2) compounding before any prosecution is instituted. ¶ 10, 15-18	Petitioner	Distinguished

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.